

Court No. - 21

Case :- WRIT - C No. - 21783 of 2024

Petitioner :- Smt. Lata Devi

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Mohan Kant Baghel

Counsel for Respondent :- Baleshwar Chaturvedi,C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Manish Kumar Nigam,J.

1. None present for the parties.
2. List as fresh on **18.07.2024.**

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

Order Date :- 10.7.2024

Ankit.

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Manish Kumar Nigam,J.

1. The prayer made in the instant petition is for quashing the recovery certificate dated 09.02.2024 issued by respondent no. 2 for recovery of electricity dues and for a direction to respondent no. 3 to decide the application of the petitioner dated 01.01.2024.

2. Learned counsel for the respondent-Electricity Department submits that it is open to the petitioner to approach the authority under Clause 6.5 of the Electricity Supply Code, 2005.

3. Having regard to the submission made, we **dispose of** the instant petition with a direction to respondent no. 3 to decide the application dated 01.04.2024 filed by the petitioner treating the same to have been filed under Clause 6.5 of the Electricity Supply Code, 2005 within time stipulated therein provided the petitioner deposits 50% of the disputed amount within a week.

4. Upon deposition of 50% of the disputed amount as stipulated above, the electricity connection would be restored subject to the decision that may be taken by respondent authority on the application of the petitioner.

5. In case, the amount is not deposited as stipulated above, the instant order will be of no avail and it shall be open to the authority to proceed further in the matter in accordance with law.

Order Date :- 18.7.2024

Ved Prakash

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)